
Appeal Decision

Site visit made on 24 August 2026

by **R Gravett BA(Hons) DipTP MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 15th September 2026

Appeal Ref: 6012188

Land to the rear of 3 Broad Lane, Downholland, Ormskirk, Lancashire L39 7HS

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Darren Harvey against the decision of West Lancashire Borough Council.
 - The application Ref is 2024/0497/FUL.
 - The development proposed is yoga facility including hardstanding, creation of wildflower meadows, wildlife pond and planting of orchard. Change of use of land to accommodate beekeeping uses and provision of outdoor yoga and holistic therapies.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. A new National Planning Policy Framework ("the Framework") was published in August 2026. The Framework is a material consideration of critical importance which should be taken into account from the day of publication. The main parties have had the opportunity to comment on any implications for the appeal, and I have taken comments received into account.
3. The description of development in the banner heading above has been taken from the Council's decision notice as it is a more accurate, succinct description of the development before me than the one provided on the application form. However, I have removed reference to 'retrospective' as this is not an act of development.
4. I observed on my site visit that the yoga facility and associated hardstanding have been constructed, and a small part of the appeal site is being used for beekeeping. However, it is proposed to remove part of the hardstanding and to create a wildflower meadow, pond and orchard. This is shown on the plans accompanying the 'Biodiversity Net Gain Report,' and I have considered the appeal on this basis.

Main Issues

5. The main issues are:
 - whether the proposal is inappropriate development in the Green Belt having regard to the Framework and relevant development plan policies;
 - the effect of the proposal on the character and appearance of the area;
 - whether the appeal site is a suitable location for the proposal, having regard to its accessibility by public transport;

- the effect of the proposal on the living conditions of neighbours, with particular regards to noise and disturbance;
- whether the proposal results in the unacceptable loss of the best and most versatile agricultural land; and
- if the proposal is inappropriate development, whether the harm by reason of inappropriateness, and any other harm, is clearly outweighed by other considerations so as to amount to the very special circumstances required to justify the development.

Reasons

Whether inappropriate development

6. The appeal site is in the Green Belt. Policy GN1 of the West Lancashire Local Plan 2012-2027 (2013) (LP) requires development proposals within the Green Belt to be assessed against national policy and any relevant Local Plan policies.
7. Policy GB7(1) of the Framework lists categories of development which are not inappropriate in the Green Belt and therefore should not be regarded as harmful to the Green Belt or be required to demonstrate very special circumstances. Policy GB7(1)(f) lists 'certain other forms of development' which would not be inappropriate, provided the impact on the openness of the Green Belt is minimised, and there would not be a significant conflict with the Green Belt purposes. These include:
 - iii. Material changes in the use of land (such as changes of use for outdoor sport or recreation, or for cemeteries and burial grounds); and
 - iv. The provision of appropriate facilities (in connection with the existing use of land or a change of use), including buildings, for outdoor sport, outdoor recreation, cemeteries and burial grounds.
8. There is no definition of 'outdoor recreation' within the Framework, and this is a broad term which could cover a wide range of outdoor activities. Nevertheless, I am satisfied that outdoor yoga is a recreational activity and accordingly, the use of the appeal site as such falls within the scope of Framework policy GB7(1)(f)(iii).
9. However, in contrast to many sport or recreational activities, yoga is unlikely to be practised outdoors in cold or wet weather conditions, or when the ground is wet. Therefore, the likelihood of yoga being practiced inside for a large amount of the year is high, and to my mind, much higher than suggested by the appellant. Based on my own observations, the studio has been built and designed for this purpose, with a central pentagon shaped yoga space with a kitchen and toilets off it to one side, and a separately accessed lounge area and therapy room to the other side. Further, from the various testimonials and photographs¹ provided in the appellant's evidence, the studio has regularly been used for yoga, Reiki, breathwork and other holistic practices, including by a variety of practitioners.
10. Irrespective of the size of the building relative to the appeal site, I find it provides far more than the essential facilities – such as changing or toilet facilities – to support an outdoor yoga use, or to support the tending of the small number of bee

¹ Appendix A of Appeal Statement and Appendix F of Planning Statement

hives located close to the far boundary of the appeal site. In my judgement, the building cannot reasonably be considered an appropriate and proportionate facility provided in connection with the outdoor yoga and/or beekeeping use of the land. It appears and functions as an indoor yoga studio with separate treatment room.

11. Nevertheless, even if I were to accept that the studio was an appropriate facility, the impact on the openness of the Green Belt would need to be minimised for the development to fall within the scope of policy GB7(1)(f) of the Framework. The Planning Practice Guidance² establishes that assessing the impact of a proposal on the openness of the Green Belt requires a judgement based on the circumstances of the case. Openness is one of the essential features of the Green Belt and has both spatial and visual dimensions.
12. The satellite image of the site taken in 2020³ shows that, save the driveway, the appeal site was previously absent of buildings or significant structures. Spatially, the development introduces a building with a reasonably large footprint with a patio and areas of hardstanding laid to gravel and used for car parking. Consequently, there is a spatial loss in the openness of the appeal site as development now exists where there was previously none. Although it is proposed to remove part of the hardstanding, I have little evidence before me that the retained area, or indeed the footprint of the building, has been designed to minimise the spatial spread of development. The creation of a pond, wildflower meadow and orchard elsewhere on the appeal site would not minimise or mitigate the harm to spatial openness.
13. The studio is in one corner of the appeal site and would be screened from the surrounding open countryside to the north and east by the mature boundary hedgerows. However, the domed roof of the studio is conspicuous close-by from Broad Lane, visually separate from other permanent built form. Overall, the proposal has a localised yet eroding effect on openness in both visual and spatial terms. It fails to minimise the impact on the openness of the Green Belt and does not therefore benefit from the provisions of policy GB7(1)(f) of the Framework.
14. Policy GB7(1)(g) of the Framework states that development will not be inappropriate in the Green Belt where all the following apply:
 - i. The development would utilise grey belt land and would not fundamentally undermine the purposes (taken together) of the remaining Green Belt across the area of the plan;
 - ii. There is an evidenced unmet need for the type of development proposed;
 - iii. The development would be in a sustainable location, with particular reference to policy TR3 of the Framework; and
 - iv. In the case of major development involving the provision of housing, the development proposed complies with policy GB8.
15. I acknowledge that participation in yoga may be increasing, and the mental and physical wellbeing benefits are well recognised. The Planning Statement also contains testimonials which demonstrates that the appeal site has a wide range of users, including local community groups, who highly value the facility. However, I

² Paragraph: 013 Reference ID: 64-013-20250225

³ Figure 1.1 of Preliminary Ecological Appraisal (April 2024)

have very little evidence before me that there is an absence of existing outdoor recreation provision locally, or a particular or unmet need for yoga facilities.

16. Therefore, even if I were to accept that the development would utilise grey belt land and would not fundamentally undermine the purposes (taken together) of the remaining Green Belt across the area of the plan, the proposal does not satisfy Policy GB7(g)(ii) of the Framework. Consequently, there is no need for me to consider the proposal against the remainder of the criteria listed above.
17. For the above reasons, I conclude that the proposal is inappropriate development in the Green Belt. Policy GB6 of the Framework establishes that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Such circumstances will not exist unless the potential harm to the Green Belt by reason of inappropriateness and any other harm resulting from the proposed development, is clearly outweighed by other considerations. In making this assessment, substantial weight should be given to the harm to the Green Belt which would be caused, including harm to its openness. I consider this further under the 'Green Belt Balance' below.

Character and appearance

18. The appeal site is to the rear of 3 Broad Lane (No 3), a detached dwelling. It is located off Broad Lane which, up to its junction with the A5147, comprises a small group of dwellings and plant nursery buildings which typically front the road with surrounding areas of hardstanding. Beyond these, the area is characterised by open countryside and agricultural fields divided by hedgerows, and I observed the appeal site to contribute positively to its semi-rural character and appearance, particularly when travelling away from the A5147.
19. The studio is sited in the south-east corner of the appeal site with a patio to the front (with outdoor benches and a fire pit) and areas of hardstanding which are laid to gravel and used predominantly for parking. A high close-boarded timber fence along the southern boundary screens views of the hardstanding from Broad Lane. However, even if reduced as proposed, from semi-public views from the driveway the hardstanding would appear expansive, projecting well beyond No 3, and up to the studio which is a distance from other permanent built form. It would appear to extend the existing hardstanding and car parking associated with No 3 and thereby encroach into the open countryside. This would have a harmful urbanising effect on the appeal site, which would be to the detriment of the semi-rural character of the area, and would not be sufficiently mitigated by the proposed ecological enhancements to the wider site.
20. I therefore conclude that the development results in harm to the character and appearance of the area. It conflicts with LP Policy GN3 which requires proposals for development to have regard to visual amenity and complement or enhance local distinctiveness through, amongst other things, appropriate siting and scale.

Suitable location

21. The closest southbound bus stop is on Mairscough Lane (A5147) which I observed to be a reasonably short walk from the appeal site along a relatively narrow but nonetheless lit and continuous footway. The northbound bus stop is further away but is still within walking distance and there is good visibility in both directions when crossing the A5147. I note that Broad Lane is a classified road with a 50mph

speed limit, but on my site visit I observed vehicles to be reducing speed on the approach to the A5147 or on the tight bend in Broad Lane close to this junction. I did not therefore find walking the route to be an unsafe or unattractive proposition such that it would discourage use of the closest bus stops.

22. The journey times are not known, but the bus stops provide services between Southport and Liverpool every 30 minutes (Monday to Saturday), and less frequently (on weekdays only) between Southport and St Helens. I appreciate that the bus services do not run during the evening when yoga classes may be held, and that services over the weekend are more limited. It is likely therefore that some users, including those from locations other than on the bus routes, would travel to the appeal site by private car. Nevertheless, the proximity of the bus stops, and the availability of bus services offers a choice of transport mode.
23. I therefore conclude that the appeal site is a suitable location for the proposal, having regard to its accessibility by public transport. Accordingly, there is no conflict with LP Policy IF3 in so far as it requires that proposals should demonstrate how access to services will be achieved by means other than the car.
24. LP Policy IF3 also states that development proposals for new public facilities and services should be co-located where possible, creating “community hubs” and providing a range of services in one sustainable and accessible location. However, whilst the yoga facilities are used by local people and community groups, it is not a public community facility, and this part of the policy is not therefore determinative.

Living conditions of neighbours

25. It is unclear from the evidence whether the reduced area of hardstanding could accommodate 20 vehicles (as originally proposed). Nevertheless, there would be a reasonable level of comings and goings, and vehicle movements, associated with the proposal which would be very close to No 3 as access to the appeal site is between its flank elevation and an outbuilding. Based on the suggested operating hours in the Case Officers Report, vehicle movements would be throughout the day and into the evening up to 9pm (Monday to Friday). However, the appeal site and No 3 are within the same ownership, and I note the appellant states that evening use of the site would be restricted to one-off events and occasional weekend gatherings, such that noise and disturbance would be minimised.
26. It was not possible to ascertain from my site visit whether the mobile home to the south of the appeal site was occupied for residential purposes. However, any noise associated with the yoga use, or associated car parking, would be largely mitigated by the orientation of the studio and the high close-boarded boundary fence. Further, the neighbouring dwelling at No 4a is sufficiently far away that noise and disturbance from activities on the site would not be a concern.
27. Limited information has been provided in respect of other activities on the site, such as the sound bath and other holistic therapies, but I nevertheless find these unlikely to be prolonged or particularly intrusive noise sources.
28. I therefore conclude that the development does not cause harm to the living conditions of neighbours, with regards noise and disturbance. Consequently, it does not conflict with LP Policy GN3 which requires development to retain reasonable levels of amenity for occupiers of neighbouring properties.

Agricultural land

29. The Glossary of the Framework defines 'best and most versatile agricultural land' as land in grades 1, 2 and 3a of the Agricultural Land Classification (ALC). The Council indicate that the ALC of the site is grade 2 and I have no reason to disagree. Policy N2(1)(b) of the Framework requires development proposals to take into account the quality of agricultural land (including that classified as best and most versatile agricultural land, and its grade), and if significant development of agricultural land is necessary, use areas of poorer quality land where possible.
30. The appellant describes the site as comprising 2 acres of grazing land but asserts that it does not form part of an agricultural holding. The photographs in the appellant's evidence⁴ supports the case that, whilst largely surrounded by agricultural land, the appeal site has historically formed a separate and enclosed parcel of land accessed from the driveway of the dwelling at No.3. Although the grassland has been maintained, there is no evidence that the land has been actively farmed in recent years.
31. The Framework does not define what is meant by 'significant,' but the footprint of the studio and the smaller area of hardstanding would be modest compared to the size of the appeal site, and the wider agricultural land. The proposal does not therefore result in the significant development of agricultural land, and the creation of an orchard, wildflower meadow and the use of the land for beekeeping would likely fall under the definition of "agriculture" at s336(1) of the Act which includes, amongst other things, fruit growing, seed growing and meadow land.
32. I therefore conclude that the proposal does not result in the harmful loss of the best and most versatile agricultural land. There is no conflict with LP Policy EC2 which seeks to prevent the irreversible development of open, agricultural land where it would result in the loss of the best and most versatile agricultural land.

Other considerations

33. The development supports the practice of yoga, as well as other holistic therapies, and is well-used and valued by local people and community groups, which is evidenced by the testimonials provided in the appellant's evidence. I do not doubt the physical and mental health benefits associated with such practices. In this regard, the development aligns with policy HC4 of the Framework which gives substantial weight to the benefits where development proposals would make a demonstrable contribution towards promoting good health, preventing ill-health, reducing health inequalities or supporting social interaction in the local community.
34. The development would also deliver several environmental enhancements, which could be controlled by condition. These include the creation of a wildlife pond, wildflower meadow and orchard planting and there would be wider ecological benefits associated with the beekeeping. The 'Biodiversity Net-gain Assessment' submitted with the planning application calculates that the proposal would deliver around a 42% increase in new habitat units and around a 70% increase in new hedgerow units. Collectively, I afford these benefits significant weight.

⁴ Appendix B of the Appeal Statement

35. It is unclear from the evidence whether the lighting columns and zip wire installed on the appeal site are lawful and accordingly, I give very little weight to any benefits associated with their removal as part of the proposal.

Other Matters

36. The appellant has referred me to policy GB5 of the Framework, which states that Green Belt land should provide benefits for communities and nature. However, this is a plan-making policy and paragraph 8 of the Framework is clear that these should not be used when making decisions on development proposals.
37. The appeal site is within a SSSI Impact Risk Zone where consultation with Natural England is required. As I am dismissing the appeal for other reasons, it is not necessary for me to consider this matter any further.

Green Belt Balance and Conclusion

38. The proposal constitutes inappropriate development in the Green Belt which is, by definition, harmful. Policy GB6 of the Framework states that substantial weight should be given to the harm to the Green Belt which would be caused, including harm to its openness. The proposal conflicts with policy DP3(1) of the Framework which requires development proposals to respond to their context so that they integrate with their surroundings. Policy DP3(3) states that proposals should be refused if, without clear justification, they conflict with (1). Accordingly, I afford substantial weight to the harm found to the character and appearance of the area.
39. Very special circumstances do not exist unless the potential harm to the Green Belt by reason of inappropriateness and any other harm resulting from the proposed development, is clearly outweighed by other considerations. Taken together, the other considerations put forward carry substantial and significant weight. It follows that the substantial weight to be given to the Green Belt harm, together with the substantial weight to which I have given to the other harm identified, are not clearly outweighed by other considerations in this case.
40. Therefore, the very special circumstances required to justify the proposed development do not exist and it conflicts with LP Policy GN1 and the Framework.
41. For the above reasons, the proposal conflicts with the development plan and material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it. Accordingly, I conclude that the appeal should be dismissed.

R Gravett

INSPECTOR